

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

GREGORY TUCKER JR,

Respondent

) Case Number: FCS-16-351510

) Hearing Date: September 22, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER CONTINUED FROM DEPARTMENT 414 TO 403 (DCSS-OUT) RE:
(MODIFICATION OF CHILD SUPPORT WITHIN 90 DAY RESERVATION OF JURISDICTION)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are, Petitioner County of San Francisco, Respondent Gregory Tucker, Jr. (Father), and Other Parent Mattesha White (Mother). Father and Mother have one child in common: Matthew (DOB: 6/1/2016).
- 2) On 10/05/16, a Judgment Regarding Parental Obligations was entered which finds that Respondent is Matthew's father and sets child support at \$0.
- 3) On 4/13/26, the Court held a hearing to adjudicate DCSS' request to modify child support filed 3/5/26. Per the Order After Hearing filed that same day, neither party was present at the hearing. The Court ordered Father to pay \$619 per month in child support, payable on the 1st of every month, commencing on 5/01/26. The attached XSpouse calculation provides that Father's monthly income is \$4,599 and Mother's monthly income is \$3,183. The order also provides, "The Court reserves jurisdiction for ninety (90) days following formal service of this order."
- 4) On 4/14/26, a Proof of Service was mailed to both parties regarding the 4/13/26 court order.

1 5) Now on for hearing is Father's Request for Order filed 6/29/26. Father requests that the Court
2 modify the 4/13/26 child support order. Respondent states he was unable to attend the 4/13/26
3 hearing because he did not receive notice of the hearing and he has since contacted DCSS to
4 update his address. Father further contends he is not opposed to a child support order; however,
5 \$619 per month is more than Father can currently afford. According to Father, he and Mother
6 have an equal timeshare of Matthew White.

7 6) On 6/29/26, Respondent filed an Income and Expense Declaration. Respondent states he is 36
8 years old, employed by the City and County of San Francisco as a Corridor, works 40 hours per
9 week, and is paid approximately \$26 per hour. Respondent reported an average monthly income
10 of \$4,200 and monthly total expenses of \$5,607. Father states that in addition to Matthew (the
11 child he shares with Mother), he has another daughter named Minyon who lives with him. Father
12 asserts he pays \$400 per month for child support for children from other relationships (elsewhere
13 in his Income and Expense Declaration Father states he pays \$350 per month for expenses for
14 minor children from other relationships who live with him). Father owes \$9,000 for a car lease.
15 Father pays \$250 per month for "children's health care not covered by insurance," and \$200 per
16 month for "travel expenses for visitation." Father indicates that he and Mother have an equal
17 timeshare of Matthew.

18 7) On 7/06/26, a Proof of Service was filed by DCSS noting that the Request for Order and Income
19 and Expense Declaration filed 6/29/26 were mailed to Mother on 7/3/26.

20 8) On 7/24/26, a Notice Regarding Payment of Support was filed wherein DCSS substituted out as
21 the payee for child support.

22 9) The hearing on Father/s 6/29/26 Request for Order was originally set for 8/10/26 in Dept. 414. On
23 8/03/26, the Court issued an order continuing the hearing to 9/22/26 in Dept. 403 due to the San
24 Francisco Department of Child Services no longer participating in the case.

25 10) Mother filed no pleadings responding to Father's 6/29/26 Request for Order.

26 **B. Tentative Ruling**

27 1) Respondent's unopposed request to modify the current child support order is GRANTED.

28 2) In accordance with the XSpouse report attached hereto and incorporated herein, child support
29 shall be payable by Father to Mother, in the amount of \$47 per month on the 1st day of each

1 month, commencing 7/1/26 (the approximate date upon which Father filed his Request for
2 Order).

- 3 3) The Court finds that Mother owes to Father child support credits in the amount of $(\$619 - \$47) \times$
4 $3 = \$1716$ for the period 7/1/26 – 9/30/26. Father may deduct \$100 per month from future child
5 support payments until this credit is satisfied.
- 6 4) The Court will prepare the Findings and Order After Hearing.